

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cheyanne Ralph	Team: Squad #2	CCRB Case #: 201706652	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 07/22/2017 8:30 PM, Monday, 08/14/2017	Location of Incident: § 87(2)(b)	Precinct: 34	18 Mo. SOL 1/22/2019	EO SOL 1/22/2019	
Date/Time CV Reported Tue, 08/15/2017 9:37 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 08/15/2017 9:37 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Peter Johnson	01054	930430	034 PCT
2. POM Kenneth Armstrong	09617	952421	034 PCT
3. POM Mohammad Khan	27221	957734	034 PCT
4. POF Nicole Rios	19352	962731	034 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Yessebel Sena	14359	961270	034 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Kenneth Armstrong	Abuse: On July 22, 2017, Police Officer Kenneth Armstrong entered § 87(2)(b)	§ 87(2)(b)
B.POM Peter Johnson	Abuse: On July 22, 2017, Police Officer Peter Johnson entered § 87(2)(b)	§ 87(2)(b)
C.POM Mohammad Khan	Abuse: On July 22, 2017, Police Officer Mohammad Khan entered § 87(2)(b)	§ 87(2)(b)
D.POF Nicole Rios	Abuse: On July 22, 2017, Police Officer Nicole Rios entered § 87(2)(b)	§ 87(2)(b)
E.POF Nicole Rios	Abuse: On July 22, 2017, Police Officer Nicole Rios threatened to arrest § 87(2)(b)	§ 87(2)(b)
F.POM Kenneth Armstrong	Abuse: On July 22, 2017, Police Officer Kenneth Armstrong forcibly removed § 87(2)(b) to the hospital.	§ 87(2)(b)
G.POM Peter Johnson	Abuse: On July 22, 2017, Police Officer Peter Johnson forcibly removed § 87(2)(b) to the hospital.	§ 87(2)(b)
H.POM Mohammad Khan	Abuse: On July 22, 2017, Police Officer Mohammad Khan forcibly removed § 87(2)(b) to the hospital.	§ 87(2)(b)
I.POF Nicole Rios	Abuse: On July 22, 2017, Police Officer Nicole Rios forcibly removed § 87(2)(b) to the hospital.	§ 87(2)(b)
J.POM Mohammad Khan	Abuse: On August 14, 2017, Police Officer Mohammad Khan threatened to arrest § 87(2)(b)	§ 87(2)(b)

Officer(s)	Allegation	Investigator Recommendation
§ 87(2)(g), § 87(4-b)		

Case Summary

On August 15, 2017, § 87(2)(b) filed this complaint via telephone with the Civilian Complaint Review Board (CCRB).

On July 22, 2017, at approximately 8:30 p.m., PO Peter Johnson, PO Kenneth Armstrong, PO Mohammad Khan, and PO Nicole Rios of the 34th Precinct responded to a report of an emotionally disturbed person at § 87(2)(b), in Manhattan (Board Review 20). The following allegations resulted:

PO Peter Johnson, PO Kenneth Armstrong, PO Mohammad Khan, and PO Nicole Rios entered § 87(2)(b) in Manhattan (**Allegations A-D: Abuse of Authority**, § 87(2)(g) PO Nicole Rios threatened to arrest § 87(2)(b) (**Allegation E: Abuse of Authority**, § 87(2)(g) PO Peter Johnson, PO Kenneth Armstrong, PO Mohammad Khan, and PO Nicole Rios forcibly removed § 87(2)(b) to the hospital (**Allegations F-I: Abuse of Authority**, § 87(2)(g)

On August 14, 2017, at approximately 8:50 p.m., PO Mohammad Khan and PO Yessebel Sena of the 34th Precinct responded to § 87(2)(b), in Manhattan. The following allegations resulted:

PO Mohammad Khan threatened to arrest § 87(2)(b) (**Allegation J: Abuse of Authority**, § 87(2)(g)

§ 87(2)(g), § 87(4-b)

There was no video footage available of this incident. On the date of incidents, PO Johnson, PO Armstrong, and PO Khan were equipped with body worn cameras (BWC), but no BWC footage exists.

Findings and Recommendations

Allegation A- Abuse of Authority: On July 22, 2017, Police Officer Kenneth Armstrong entered § 87(2)(b), in Manhattan.

Allegation B- Abuse of Authority: On July 22, 2017, Police Officer Peter Johnson entered § 87(2)(b) in Manhattan.

Allegation C- Abuse of Authority: On July 22, 2017, Police Officer Mohammad Khan entered § 87(2)(b), in Manhattan.

Allegation D- Abuse of Authority: On July 22, 2017, Police Officer Nicole Rios entered § 87(2)(b) in Manhattan.

It is undisputed that officers entered § 87(2)(b), in Manhattan based on a 911 call reporting that § 87(2)(b) was an emotionally disturbed person (EDP) and was possibly in possession of a knife.

§ 87(2)(b) provided a sworn statement to the CCRB on August 16, 2017 (Board Review 01), and testified that on July 22, 2017, at approximately 8:30 p.m., he heard a knock on his door. When he opened his door he observed approximately six uniformed officers, and the owner of his apartment, § 87(2)(b) was subleasing the apartment from § 87(2)(b) and was never given a lease agreement because § 87(2)(b) was not legally allowed to sublet the apartment. When § 87(2)(b) opened the door, he opened the door entirely as he had not done anything wrong. When he did so, the officers immediately entered his living room with two paramedics. § 87(2)(b) did not object to the officers entering his apartment, and could not recall any statements made by the officers when they entered the apartment. He stated that an officer said something along the lines of, “Your roommate said that you are acting weird and that you have weapons.” He later said that when he opened the door, PO Johnson said, “You have to get ready, you are going to the hospital.” § 87(2)(b) replied, “That is not my roommate. I can show you proof that he is not my roommate.” The officers did not ask § 87(2)(b) to see any proof that he did not have a roommate and did not want to hear anything from him. § 87(2)(b) stated, “I give you permission to search my apartment, I do not have any weapons. I can sign a paper.” The officers did not search the apartment. He later said he could not recall if the officers opened or searched anything when they entered the apartment.

During a telephone conversation on September 7, 2017 (Board Review 02), § 87(2)(b) said that he could not recall how wide he opened the door, nor could he describe how the officers entered inside of his apartment.

PO Armstrong (Board Review 03) testified that on July 22, 2017, he and PO Johnson responded to a radio run regarding an emotionally disturbed person at § 87(2)(b), in Manhattan. When officers arrived at the location, they were met by § 87(2)(b)'s roommate, § 87(2)(b) who stood outside of the building. § 87(2)(b) informed officers that § 87(2)(b) was suicidal and mentioned there was a knife involved. PO Armstrong could not recall the details of the conversation at the time of his interview. When officers knocked on the door of § 87(2)(b) § 87(2)(b) did not want to open the door. Once officers identified themselves as the police, § 87(2)(b) opened the door. PO Armstrong later said that they asked § 87(2)(b) to open the door because he had keys to the apartment. PO Armstrong could not recall which officer decided that they would enter the apartment nor could he recall § 87(2)(b)'s demeanor once they entered the apartment. When asked why he needed to enter the apartment, PO Armstrong said, “Because it was a suicidal male. We have to assess the situation and make sure he was okay.” PO Armstrong did not ask § 87(2)(b) if he could enter the apartment because the apartment also belonged to § 87(2)(b). However, § 87(2)(b) had not shown officers any documentation proving that he lived there and PO Armstrong did not ask him for proof that he lived there at that time.

PO Johnson (Board Review 04) corroborated PO Armstrong's account that they met with § 87(2)(b) when they arrived on scene. He could not recall which officers were interacting with § 87(2)(b) at that time but stated that § 87(2)(b) voluntarily opened the apartment door for officers, and no officer asked him to do so. PO Johnson could not recall if § 87(2)(b) ever provided officers with any additional information regarding § 87(2)(b)'s behavior, or if § 87(2)(b) ever informed them what § 87(2)(b) was doing with the knife. PO Johnson also could not recall if he ever asked § 87(2)(b) to open the door. Once § 87(2)(b) opened the door, officers entered the apartment with the Emergency Medical Services (EMS). PO Johnson explained that, “If it is an

EDP with a knife, we don't let EMS enter by themselves because if EMS goes in by themselves, then they could get harmed by someone with a knife." Besides the fact that the Emergency Medical Technicians (EMTs) are not allowed to enter an apartment alone, and the fact that § 87(2)(b) opened the door for the officers, there were no additional reasons that factored into PO Johnson's decision to enter the apartment. He also stated that all of the officers on scene decided together that they would enter the apartment.

PO Khan (Board Review 05) testified that when he arrived, § 87(2)(b) approached officers and said that § 87(2)(b) had locked him out § 87(2)(b). § 87(2)(b) placed something on the door which prevented § 87(2)(b) from using his key to enter the apartment. When officers knocked on the door, § 87(2)(b) was hesitant to open the door but eventually opened the door after the officers showed him their shields. When § 87(2)(b) opened the door, the door chain was still attached to the door. PO Khan then asked § 87(2)(b) if they could come inside the apartment to see if everything was okay, and to see if there were any weapons inside the apartment. § 87(2)(b) replied, "Yeah, you guys can come in, there is nothing going on." He then removed the chain from the door, and opened the door entirely. § 87(2)(b) did not object to officers entering his apartment and did not ask them to leave at any point.

PO Rios (Board Review 06) stated that when officers arrived they knocked on § 87(2)(b)'s apartment door approximately four times. Each time there was no answer. § 87(2)(b) eventually opened the door himself and was not asked by any officer to do so.

No statements were obtained from § 87(2)(b)

Recordings of the 911 call made by § 87(2)(b) on the date in question were obtained by the investigation. § 87(2)(b) called 911 and reported that § 87(2)(b) was emotionally disturbed, and wanted an ambulance to respond to check him out. § 87(2)(b) reported that § 87(2)(b) had been keeping knives around the apartment including his bedroom, and was making statements with suicidal references. § 87(2)(b) stated that he was afraid and had been staying away from the apartment because § 87(2)(b) was acting very erratic and was running around the apartment. § 87(2)(b) later informed the EMS operator that he had keys to the apartment (Board Review 07).

According to People v. Dallas, 8 N.Y.3d 890 (2007), officers may enter a private residence without a warrant if they have "reasonable grounds to believe that there is an emergency at hand and an immediate need for their assistance for the protection of life or property," if their search is not "primarily motivated by the intent to arrest or seize evidence," and if there is "some reason approximating probable cause to associate the emergency with the area or place being searched" (Board Review 08).

People v. Greenleaf, 222 AD 2d 838 (1995) outlines three requirements that must be met to apply the emergency exception to the warrant requirement for an entry: "The police must have reasonable grounds to believe that there is an emergency at hand and an immediate need for their assistance for the protection of life or property. The search must be primarily motivated by intent to arrest and seize evidence. There must be some reasonable basis, approximating probable cause, to associate the emergency with the area or place to be searched" (Board Review 10).

NYPD Patrol Guide Procedure 221-13 (Board Review 09) defines an emotionally disturbed person as “a person who appears to be mentally ill or emotionally deranged and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others,” and states that emotionally disturbed person must be taken into protective custody.

§ 87(2)(g)

Allegation E –Abuse of Authority: On July 22, 2017, Police Officer Nicole Rios threatened to arrest § 87(2)(b)

§ 87(2)(b) (Board Review 01) stated that when the officers entered his apartment they entered with two EMT’s. An officer then said something along the lines of, “Your roommate said that you are acting weird and that you have weapons.” He later said that when he opened the door, PO Johnson said, “You have to get ready, you are going to the hospital.” § 87(2)(b) stated, “I give you permission to search my apartment, I do not have any weapons. I can sign a paper.” The officers in response told § 87(2)(b) to get ready, as he was wearing a robe at the time of their arrival. § 87(2)(b) stated to the CCRB that at this point the officers forced him to get ready because even after he told them that he did not want to go to the hospital, the officers still insisted that he get ready to go. PO Rios, whom he described as a short Hispanic female with a petite build, said, “Don’t argue. Just get in the ambulance or you are going to get arrested.” § 87(2)(b) did not ask PO Rios why he would be arrested because he was scared.

PO Rios (Board Review 06) denied making the statement as alleged by § 87(2)(b) and stated that § 87(2)(b) could not be arrested for any offense. PO Rios also did not threaten § 87(2)(b) for refusing to go to the hospital and stated that she had no verbal interaction with § 87(2)(b). PO Rios confirmed that she was the only female officer on scene at the time of the incident.

PO Khan (Board Review 05) did not hear PO Rios say, “Don’t argue. Just get into the ambulance or you will be arrested,” and did not hear any officer threaten to arrest § 87(2)(b). He stated to the CCRB that, “We don’t really arrest people if they don’t want to go to the hospital. If you refuse, depending on how violent you are, we put you in handcuffs and escort EMS to the hospital. But either way you are going to go to the hospital. ”

PO Johnson (Board Review 03) and PO Armstrong (Board Review 02) both could not recall whether there was a female officer present for this incident, and could not recall hearing any officer say, “Don’t argue. Just get into the ambulance or you will be arrested” to § 87(2)(b).

§ 87(2)(g)

§ 87(2)(g)

Allegation F- Abuse of Authority: On July 22, 2017, Police Officer Kenneth Armstrong Peter Johnson forcibly removed § 87(2)(b) to the hospital.

Allegation G- Abuse of Authority: On July 22, 2017, Police Officer Peter Johnson forcibly removed § 87(2)(b) to the hospital.

Allegation H- Abuse of Authority: On July 22, 2017, Police Officer Mohammad Khan forcibly removed § 87(2)(b) to the hospital

Allegation I- Abuse of Authority: On July 22, 2017, Police Officer Nicole Rios forcibly removed § 87(2)(b) to the hospital.

It is undisputed that § 87(2)(b) was removed to § 87(2)(b).

PO Johnson stated that once inside the apartment, the EMTs spoke with § 87(2)(b) about the incident and determined that § 87(2)(b) should be removed to the hospital. PO Johnson could not recall why the EMTs determined that § 87(2)(b) needed to be removed to the hospital, or how they confirmed that § 87(2)(b) need to be removed to the hospital. PO Johnson also could not recall what § 87(2)(b) was doing at the time EMTs made this decision, or if § 87(2)(b) was removed to the hospital for any additional reasons. PO Johnson stated to the CCRB that the EMTs determine whether an individual would be removed to the hospital after speaking with them, and that officers are only there to assist them. PO Johnson stated to the CCRB that it was solely the decision of EMS to remove § 87(2)(b) to the hospital.

PO Armstrong, PO Rios, and PO Khan all testified that the EMTs made the decision to remove § 87(2)(b) to the hospital.

As discussed above, the 911 Communications CD obtained by the investigation revealed that § 87(2)(b) § 87(2)(b) called 911 to report that § 87(2)(b) was an emotionally disturbed person because he had been keeping knives around the apartment, and was making statements with suicidal references (Board Review 07).

Patrol Guide Procedure 221-13 (Board Review 09) states that a person who appears to be mentally ill or temporarily deranged and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others must be removed to the hospital.

New York Mental Hygiene Law § 9.41 (Board Review 11) states that an officer may take into custody.... “any person who appears to be mentally ill and is conducting himself or herself in a manner which is likely to result in serious harm to the person or others. Such officer may direct the removal of such person or remove him or her to any hospital or any comprehensive psychiatric emergency program, or, pending his or her examination or admission to any such hospital or program, temporarily detain any such person in another safe and comfortable place, in

which event, such officer shall immediately notify the director of community services or, if there be none, the health officer of the city or county of such action.”

§ 87(2)(g)

Allegation J- Abuse of Authority: On August 14, 2017, Police Officer Mohammad Khan threatened to arrest § 87(2)(b)

§ 87(2)(b) (Board Review 01) alleged that on August 5, 2017, PO Khan and an unknown officer arrived at his apartment with § 87(2)(b)'s mother. § 87(2)(b)'s mother handed § 87(2)(b) a document which stated that if he did not vacate the premises, he would be taken to court. § 87(2)(b) stated to the CCRB that this document was not an eviction notice and looked like § 87(2)(b) made the document himself. § 87(2)(b) later misplaced this document when he moved out and did not have it available.

§ 87(2)(b) stated that on August 14, 2017, PO Khan returned to § 87(2)(b)'s apartment with PO Sena, § 87(2)(b)'s mother (name unknown), and § 87(2)(b)'s girlfriend (name unknown). PO Khan said, “You need to get out.” § 87(2)(b) stated to the CCRB that there was no court order in place at the time of the officer’s arrival, and that he had not gone to court with § 87(2)(b) at that point. § 87(2)(b) replied, “Do you have a court order?” PO Khan said, “Ten days ago I came here with the mom.” § 87(2)(b) replied, “Yes, but that was a ten day notice. It did not mean that I have to leave today.” PO Khan replied, “It is either you get out, or you get arrested.” PO Khan remained outside the apartment and did not come inside the apartment. § 87(2)(b) got his belongings and handed the keys to PO Khan. § 87(2)(b) then left the apartment.

PO Khan testified that on August 14, 2017, he received a call reporting harassment at § 87(2)(b), in Manhattan. He could not recall the details of the call. When officers arrived, § 87(2)(b) stood outside his apartment with his mother. § 87(2)(b)'s mother showed PO Khan court documentation stating that § 87(2)(b) had to vacate the premise on August 10, 2017. PO Khan said that on August 14, 2017, § 87(2)(b) was not yet officially evicted, and still had a few grace period days to remain inside the apartment. § 87(2)(b) and his mother stated that they wanted PO Khan to hand § 87(2)(b) this documentation. § 87(2)(b) also needed to go into the apartment because he had forgotten some of his property inside the apartment. § 87(2)(b) told PO Khan that when he tried his key in the door to enter the apartment, his key did not work. § 87(2)(b) then tried his key in the door in front of PO Khan, and the door did not open. When asked if handing § 87(2)(b) the documentation provided by § 87(2)(b) and his mother was under NYPD’s jurisdiction, PO Khan said, “We can serve you papers, we just can’t kick you

out. The Marshalls are the ones who actually kick people out of apartments.” PO Khan then knocked on the door of § 87(2)(b). When § 87(2)(b) opened the door, PO Khan said, “You have paperwork stating that on August 10, 2017, you have to leave.” § 87(2)(b) in response said, “Okay I will speak to my lawyer.” PO Khan then gave § 87(2)(b) a copy of the documentation. At some point during the conversation § 87(2)(b) stated that he had a letters and emails proving that he subleased the apartment from § 87(2)(b) however, § 87(2)(b) never produced any letter or emails. PO Khan then said, “Why did you change the locks?” § 87(2)(b) replied, “I live here, he does not.” § 87(2)(b) then showed PO Khan court paperwork which stated that § 87(2)(b) was evicted on August 10, 2017, however there was a ten days grace period. PO Khan said, “You can’t change the lock, that’s illegal eviction.” PO Khan then said, “Either you get arrested or give him a copy of the key.” He later said that he told § 87(2)(b) “Either you leave or give him the keys to the apartment.” § 87(2)(b) handed PO Khan his keys. He then took three suitcases and walked out of the apartment.

On August 14, 2017, PO Sena (Board Review 16) and PO Khan received a job stating that the caller, identified by the investigation to be § 87(2)(b) could not get into his apartment because the person he subleased his apartment to, identified by the investigation to be § 87(2)(b) had changed the locks. When PO Sena and PO Khan arrived on scene, they were met by § 87(2)(b) his girlfriend, and his mother who stood outside of the building. § 87(2)(b) informed officers that he wanted to get inside the apartment to remove some of his belongings but could not. He then showed officers a lease agreement which listed him as the owner of the apartment, as well as court papers stating that § 87(2)(b) has to vacate the apartment within ten days as of August 11, 2017. § 87(2)(b) was not listed on the lease. PO Sena did know why § 87(2)(b) was being evicted; PO Khan did not inform PO Sena that he gave § 87(2)(b) a copy an eviction notice ten days prior, and § 87(2)(b) did not mention that he received any documentation from § 87(2)(b) stating that he had to vacate the apartment within ten days as of August 11, 2017. § 87(2)(b) did not provide any documents proving that he legally resided inside the apartment. § 87(2)(b) then tried to use his key in the door of § 87(2)(b), and it did not work. PO Sena stated that § 87(2)(b) acknowledged that he had changed the locks, but never informed officers why he did so. PO Sena stated that by § 87(2)(b) changing the locks meant that an illegal eviction was taking place, and § 87(2)(b) could be arrested for this offense, which was a misdemeanor. However, PO Sena and PO Khan did not say this to § 87(2)(b) and were not planning on arresting him. She said, “We were just trying to get the occupant to give the tenant a copy of the key.” PO Sena could not recall if § 87(2)(b) refused to provide § 87(2)(b) with a copy of the keys, and did not tell § 87(2)(b) that if he did not provide a copy of the keys he would have to leave his apartment. She also denied hearing PO Khan say so. PO Sena did not say, “It’s either you get out or you will be arrested,” and denied hearing PO Khan say so. § 87(2)(b) could not be arrested for refusing to leave the apartment, because he was never asked by officers to leave, he was only asked to give § 87(2)(b) a copy of the key. Once PO Khan and § 87(2)(b) finished speaking, § 87(2)(b) gave PO Khan two copies of the keys and began packing his belongings inside the apartment.

§ 87(2)(g)

§ 87(2)(g) [Redacted]
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§ 87(2)(g), § 87(4-b) [Redacted]
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§ 87(2)(g), § 87(4-b)

Mediation, Civil and Criminal Histories

- This case was eligible for mediation but was rejected by § 87(2)(b) § 87(2)(b)
- As of January 16, 2018, no Notice of Claim has been filed in regards to this incident (Board Review 17).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first case filed by or involving § 87(2)(b) (Board Review 19).
- PO Peter Johnson has been a member of service for 15 years and has had five CCRB allegations pleaded against him.
 - In CCRB 201703230, a refusal to provide name and shield allegations was substantiated against PO Johnson. The Board recommended command discipline against him, for which the NYPD disposition and penalty are still pending as of this writing. § 87(2)(g), § 87(4-b)
- PO Kenneth Armstrong has been a member of service for five years and has had seven CCRB allegations pleaded against him. These allegations were not substantiated § 87(2)(g)
- PO Mohammed Khan has been a member of service for two years and this is his first CCRB case.
- PO Nicole Rios has been a member of service for one year and this is her first CCRB case.
- PO Yessebel Sena has been a member of service for one year and this is her first CCRB case.

Squad: 16

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer:

Title/Signature

Print

Date